

(MUST ACCOMPANY FORM 1)

(04/07)

IN THE PROVINCIAL COURT OF NEWFOUNDLAND AND LABRADOR

COURT CENTRE: _____

Court File No. _____

BETWEEN: _____

APPLICANT

AND: _____

RESPONDENT

SUPPORTING AFFIDAVIT:

(**must** accompany all Applications) (Strike out those sections which are not applicable.)

I, _____, of _____ in the Province
of Newfoundland and Labrador, make oath and say as follows:

1. THAT I am the Applicant and have full knowledge of the facts herein.

2. THAT I make this Affidavit in support of my Application.

3. (a) THAT the parties were married on _____, _____ and separated on
_____, _____,

and a petition for divorce has been commenced in the Supreme Court at
_____ but has not yet been heard,

or, the parties were divorced on _____, _____ in the _____ Court
at _____,

and the custody/access/support issues were _____ or were not _____ referred to in the Order.

OR

_____, _____ and ended _____, _____.

OR THAT the parties were never married but lived together from _____

_____ to _____, _____.

--

	APPLICANT	RESPONDENT
Marital Status		
Maiden Name (if applicable)		
Place of Birth		
Date of Birth		
Telephone Number		

CHILD'S FULL NAME	DATE and PLACE OF BIRTH	RESIDES WITH

6. Listed below are all written agreements or court orders affecting the child/ren and a copy of each is attached. If no proceedings, state "none".

--

7. The present parenting (custody and access) arrangements are:

--

8. The proposed parenting (custody and access) arrangements are:

--

(If you are applying to file a Consent Order, please attach the Order.)

9. The present support arrangements were entered into on _____, _____, or were ordered by _____ Court on _____, _____ and are as follows:

--

10. The proposed arrangements for the support of our child(ren) is/are:

(If you are applying to file a Consent order, please attach the Order.)

11. The particulars of change in circumstances and/or reason for this application are:

12. The amount of arrears under the support order, if any, is: _____

13. CHILD SUPPORT:

☐ I am claiming the basic table amount as per the Child Support Guidelines only. **(No financial information is required if you are the person claiming (or, in the case of a variation application, receiving) child support but an Applicant who is or who will be the person paying support must attach copies of his/her three most recent Income Tax Returns and Notices of Assessment from the Canada Revenue Agency as well as a statement of year-to-date earnings from his/her employer or other documentation to verify current income.)**

☐ I am claiming an amount different than the table amount for the following reason:

☐ there is a claim for undue hardship. **(Attach Schedules B and C together with copies of your three most recent Income Tax Returns and Notices of Assessment from the Canada Revenue Agency as well as a statement of year-to-date earnings from your employer or other documentation to verify your current income.)**

☐ the child is at or over the age of majority. (Attach Schedule C together with copies of your three most recent Income Tax Returns and Notices of Assessment from the Canada Revenue Agency as well as a statement of year-to-date earnings from your employer or other documentation to verify your current income.)

☐ I exercise a right of access to, or have physical custody of the child/ren for not less than 40% of the time over the course of the year. (Attach copies of your three most recent Income Tax Returns and Notices of Assessment from the Canada Revenue Agency as well as a statement of year-to-date earnings from your employer or other documentation to verify your current income.)

☐ we have an agreement as to the amount of support payable. (Attach Consent Order in Form 8A or 8B.)

☐ I stand in the place of a parent for the child. (Attach Schedule C together with copies of your three most recent Income Tax Returns and Notices of Assessment from the Canada Revenue Agency as well as a statement of year-to-date earnings from your employer or other documentation to verify your current income.)

☐ Income is in excess of \$150,000.00 annually. (Attach Schedule D together with copies of your three most recent Income Tax Returns and Notices of Assessment from the Canada Revenue Agency as well as a statement of year-to-date earnings from your employer or other documentation to verify your current income.)

☐ Other:

--

14. OTHER SUPPORT ISSUES:

☐ I am claiming the basic table amount plus an amount for special or extraordinary expenses.

(Attach Schedule A together with copies of your three most recent Income Tax Returns, Notices of Assessment from the Canada Revenue Agency and a statement of year-to-date earnings from your employer or other documentation to verify your current income.)

☐ I am not claiming the basic table amount but I am claiming an amount for special or extraordinary

expenses. **(Attach Schedule A together with copies of your three most recent Income Tax Returns, Notices of Assessment from the Canada Revenue Agency and a statement of year-to-date earnings from your employer or other documentation to verify your current income.)**

☐ I am seeking medical or dental insurance coverage for the child pursuant to section 6 of the *Child*

Support Guidelines Regulations. **(give details of your claim)**

☐ I am seeking spousal/partner support. **(Attach Schedule C together with copies of your three**

most recent Income Tax Returns, Notices of Assessment from the Canada Revenue Agency and a statement of year-to-date earnings from your employer or other documentation to verify your current income.)

15. I have attached the following financial information to this Application: **(Please note that the Court cannot process your application if you do not attach the required financial information.)**

☐ None

☐ Schedule A (Claim for Special/Extraordinary Expenses)

☐ Schedule B (Claim for Undue Hardship)

☐ Schedule C (Statement of Monthly Income and Expenses)

☐ Schedule D (Long Form Financial Statement)

☐ Copies of my three most recent Income Tax Returns and Notices of Assessment

☐ A letter from the Canada Revenue Agency verifying that I did not file an Income Tax Return for the year(s) _____.

☐ A statement of year-to-date earnings from my employer confirming my earnings, including any overtime, for the current year.

☐ Other: (please specify)

16. ☐ I do not expect any significant changes to the financial information which is attached.

OR

☐ I anticipate the following changes to the attached financial information: (give details)

SWORN TO OR AFFIRMED AT

_____, NL,

this _____ day of

_____, 20____.

Signature of Applicant

Commissioner for Oaths/Justice of the Peace